

Common ground and shared goals

Day 1 · Session 2 | Both sectors | Shared resource

Keep this pack. It is not a set of notes to read once — it is a working sheet you will write on this morning, and a reference you will be sent back to on Wednesday, Thursday and Friday. The goals your room writes today are the goals we return to when the week gets difficult.

What This Session Is For

This week brings two sectors into one room: public health, and higher education. From tomorrow onward we work on conflict, on the law, on bargaining approaches and on live negotiation — and in several of those sessions your interests will genuinely differ, both between the sectors and across the table within them. That is the work, and it is why you are here.

This morning comes first, and deliberately so. Before we go anywhere near what divides, we establish what these two sectors hold in common: what you both deliver, what you both struggle with, what you both need, and what you are jointly for. By half past twelve you will have written that down, in your own words, and hung it on the wall at the back of this room.

Part 1 — Three Things Both Sectors Share

Public institutions, service continuity and the central role of the workforce connect both sectors. Their legal arrangements and sources of revenue differ.

Shared feature	What it means in practice
Public institutions and public accountability	County governments, national facilities and university councils have distinct legal responsibilities. Public funding and institutional revenue both matter. Identify the actual employer, decision authority and funding source before bargaining.
The public relies on continuity	Interruptions affect patients, students and communities. Legal limits on industrial action depend on the service and applicable law; public health and higher education do not have identical essential-service rules.
People deliver the service	Staffing, skills, working conditions and retention affect service quality. Personnel costs are a major consideration, but their share varies by institution and accounting measure.

Part 2 — The Commonality Market

In a mixed group of three — at least one person from each sector — you will build one flipchart sheet with three columns. The rule of the market is simple and it is the whole exercise: a post-it goes up only if it is true of both sectors. If it is true of only one, park it at the side of the sheet. Use this worksheet to draft before you write on the post-its.

Column	Your group's entries
What we both deliver — what the public actually gets because you come to work	
What we both struggle with — be concrete; 'we are budgeted for posts that are never filled' beats 'underfunding'	
What we both need — from the employer, from government, and from each other; try to get past pay alone	
Parked — true of one sector only. These are not wasted; we return to them later in the week.	

You will then have three dot stickers each. Walk the room, read other groups' sheets, and place your dots on the three post-its that matter most for this week. You may not dot your own sheet.

Part 3 — Why These Two Sectors Matter to Kenya

Health and higher education support public well-being and economic activity. Build an evidence-based investment case alongside a properly costed claim; the expected benefits do not create an automatic entitlement to new funding.

Sector	What the sector carries
Public health	A qualified, supported workforce is central to access and quality. County employers and national referral facilities have different responsibilities. Better services can support employment and economic activity; demonstrate the effects rather than assuming an automatic revenue increase.
Higher education and TVET	Teaching, research and skills development support many occupations, including health professions. Universities and TVET institutions have distinct governing arrangements. Skills can constrain growth, alongside other factors; disruption has consequences for learners and communities.

On Thursday you will meet the phrase 'growing the pie'. Both sectors have a genuine case that investment in them can support employment and economic activity when backed by evidence. A negotiator who can make that case is in a different conversation from one who can only ask for more.

Part 4 — Writing Your Shared Goal

Your group writes one message. One only. Complete this sentence in fifteen words or fewer:

“Whatever we disagree about this week, we agree that...”

Step	Your working space
Draft 1 — write it quickly, do not polish	
Say it aloud to your group. Could each of you say it honestly, in the first person, without adding 'well, more or less'?	
Test 1 — is it ours? Does it use the language we actually use at work, rather than the language of a policy document?	
Test 2 — does it survive disagreement? Would it still be true on Thursday afternoon with real money in dispute and the two of us on opposite sides?	
Test 3 — is it short enough to say out loud? Fifteen words at most, readable in one breath by somebody who is irritated.	
Final version — this is what goes on the A3 card, in thick marker, with 'health / higher education' at the bottom	

Two failure modes to avoid. The empty generality — 'we agree that dialogue is important' — which could have been written by anybody in any country. And the disguised demand — a position wearing a goal's clothing. The test for the second is simple: could somebody on the other side of the table say this sentence too? If not, it is a position, and there will be plenty of time for positions from tomorrow.

The Return Rule

At the end of this session the room adopts a rule, out loud, for the rest of the week.

Any person in this room — either sector, participant or facilitator, at any point between now and Friday at 12:30 — may say: "let us go back to the wall." We stop. The goals are read aloud. We begin again from there.

It is not a veto and it is not a way of avoiding a hard conversation: the disagreement is still there when we return to it. It carries no rank — the most junior person here can stop the most senior, and a participant can stop a facilitator. And it costs about ninety seconds.

Carrying This Into the Week

The Common Goals Wall stays up until the Friday closing at 12:30. Read it when you come in each morning.

Day 1, Session 3 (14:00 today) — what social dialogue actually is, its four forms, who sits at the table, and why these two sectors need a distinct approach

Day 3 — before the first role-play, we return to the wall deliberately

Day 4 — the economics of bargaining with government, where 'growing the pie' is developed in full

Day 5 — the two sectors come back together, and the sector action points you agree are written against what is on this wall